

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
WALTER BRAVO,

Plaintiff,

-against-

**AMENDED
COMPLAINT**

11 CV 0773
(NGG) (VVP)

Jury Trial Demanded

CITY OF NEW YORK, JAVIER MUNOZ, in his individual capacity, MANUEL ORELLANA, in his individual capacity, and KELLY QUINN, in her individual capacity, and JOHN or JANE DOE, in his/her individual capacity (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
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Plaintiff WALTER BRAVO, by his attorneys, Leventhal & Klein, LLP, complaining of the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. §

1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff WALTER BRAVO is a forty-eight year old Puerto Rican American citizen who resides in Brooklyn, New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants JAVIER MUNOZ, MANUEL ORELLANA, KELLY QUINN, and JOHN or JANE DOE, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW

YORK.

FACTS

12. On November 21, 2009, at approximately 2:15 p.m., plaintiff was lawfully present at the corner of Fulton Street and Norwood Avenue, Brooklyn, New York, when defendants MUNOZ and ORELLANA unlawfully stopped, detained, questioned, assaulted, battered, and arrested plaintiff.

13. At the aforementioned time and location, defendant MUNOZ and ORELLANA approached plaintiff and asked what he was doing standing at the location.

14. When plaintiff responded, in sum and substance that he was waiting for a sandwich from the deli, defendant MUNOZ stated, you're a fucking liar.

15. When plaintiff expressed that he was not lying, defendant MUNOZ asked if plaintiff knew he was a police officer.

16. Plaintiff responded, in sum and substance, I know you're a police officer.

17. Defendant MUNOZ responded, in sum and substance that he thought plaintiff was a tough guy. Defendants MUNOZ and ORELLANA immediately grabbed plaintiff, slammed him into a vehicle, and while defendant ORELLANA grabbed his neck, defendant MUNOZ slapped plaintiff on his face twice.

18. Defendant MUNOZ searched plaintiff and placed severely over tight handcuffs on plaintiff's wrists.

19. Shortly thereafter, the defendants transported plaintiff to the NYPD's 75th precinct stationhouse and imprisoned him therein.

20. While plaintiff was imprisoned in said precinct, he requested medical treatment because he was suffering from severe pain in his hands and wrists.

21. Upon information and belief, despite being aware of plaintiff's serious medical needs, defendant QUINN refused to render or request medical attention for plaintiff, and instead stated, in sum and substance, you're not going to the hospital, you're fine.

22. The defendants imprisoned plaintiff until his arraignment in Kings County Criminal Court in the evening of November 22, 2009 on baseless charges of Disorderly Conduct and Resisting Arrest, filed under docket number 2009KN093442; said charges having been filed based on the false allegations of the defendants. The defendants caused said prosecution to be commenced against plaintiff for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to cover up the above mentioned acts of brutality and abuse of authority.

23. Plaintiff was released on his own recognizance after his arraignment.

24. Plaintiff subsequently sought medical attention for the injuries to his wrists, and was eventually diagnosed, without limitation, with extensor carpi ulnaris tendinosis and a triangular fibrocartilage tear in the left wrist.

25. Over the course of the next fifteen months, plaintiff was compelled to return to Criminal Court for nine appearances. On February 2, 2011, all charges filed against plaintiff were adjourned in contemplation of dismissal, and subsequently dismissed and sealed.

26. Defendant JOHN or JANE DOE supervised defendants JAVIER MUNOZ, MANUEL ORELLANA, and KELLY QUINN, and approved of, oversaw, and otherwise presided over the defendants' arrest and prosecution of the plaintiff.

27. JAVIER MUNOZ, MANUEL ORELLANA, and KELLY QUINN, and JOHN or JANE DOE, either participated in or failed to intervene in the illegal conduct described herein.

28. All of the above occurred as a direct result of the unconstitutional policies,

customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees.

29. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding the lawful justification to stop, detain, interrogate, or arrest individuals; the use of excessive force in restraining individuals with over tight handcuffs; and the arrest of individuals for the exercise of their First Amendment rights and subsequent manufacture of evidence to justify the false arrest.

30. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

31. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and supervise them.

32. As a result of the foregoing, plaintiff WALTER BRAVO sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights Under 42 U.S.C. §§ 1981 and 1983)

33. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs “1” through “32” with the same force and effect as if fully set forth herein.

34. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

35. All of the aforementioned acts deprived plaintiff WALTER BRAVO of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§ 1983.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

37. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

38. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

39. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive

damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

40. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "39" with the same force and effect as if fully set forth herein.

41. Defendants arrested plaintiff WALTER BRAVO without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

42. Defendants caused plaintiff WALTER BRAVO to be falsely arrested and unlawfully imprisoned.

43. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

44. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "43" with the same force and effect as if fully set forth herein.

45. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiff WALTER BRAVO'S constitutional rights.

46. As a result of the aforementioned conduct of defendants, plaintiff WALTER BRAVO was subjected to excessive force and sustained physical and emotional injuries.

47. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(First Amendment Claim under 42 U.S.C. § 1983)

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "47" with the same force and effect as if fully set forth herein.

49. The acts of the defendants were in retaliation for plaintiff's exercise of his First Amendment right to freedom of speech and expression, and not in response to any unlawful acts of the plaintiff.

50. As a result of the aforementioned conduct of defendants, plaintiff was subjected to retaliation for the exercise of their First Amendment rights.

51. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "51" with the same force and effect as if fully set forth herein.

53. Defendants issued criminal process against plaintiff WALTER BRAVO by causing his arrest and prosecution in Kings County Criminal Court.

54. Defendants caused plaintiff WALTER BRAVO to be arrested and prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to

cover up their acts of brutality and abuse of authority, and thereby violated plaintiff's right to be free from malicious abuse of process.

55. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Deliberate Indifference to Serious Medical Needs under 42 U.S.C. § 1983)

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "55" with the same force and effect as if fully set forth herein.

57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that was deliberately indifferent to plaintiff's serious medical needs by disregarding an excessive risk to the plaintiff's health or safety, which is forbidden by the Constitution of the United States.

58. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

59. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "58" with the same force and effect as if fully set forth herein.

60. The defendants conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth

Amendment.

61. As a result of the foregoing, plaintiff WALTER BRAVO was deprived of his liberty and right to substantive due process, causing emotional and physical injuries.

62. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. The defendants seized, assaulted, battered detained, arrested, imprisoned, and prosecuted plaintiff WALTER BRAVO, because of his national origin, and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

65. As a result of the foregoing, plaintiff WALTER BRAVO was deprived of his rights under the Equal Protection Clause of the United States Constitution.

66. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “66” with the same force and effect as if fully set forth herein.

68. Defendants had an affirmative duty to intervene on behalf of plaintiff WALTER BRAVO, whose constitutional rights were being violated in their presence by other officers.

69. The defendants failed to intervene to prevent the unlawful conduct described herein.

70. As a result of the foregoing, plaintiff WALTER BRAVO’S liberty was restricted for an extended period of time, he was subjected to excessive force, he was maliciously issued criminal process, he was put in fear of his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

71. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

72. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “71” with the same force and effect as if fully set forth herein.

73. The supervisory defendants personally caused plaintiff’s constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

74. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable

attorney's fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

75. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "74" with the same force and effect as if fully set forth herein.

76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

77. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, subjecting individuals to excessive force; and, arresting individuals without probable cause and then engaging in falsification and/or committing perjury and/or manufacturing evidence in an effort to convict such individuals. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiff WALTER BRAVO'S rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff WALTER BRAVO.

79. The foregoing customs, policies, usages, practices, procedures and rules of the

CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff WALTER BRAVO as alleged herein.

80. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff WALTER BRAVO as alleged herein.

81. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff WALTER BRAVO was unlawfully arrested, illegally searched, maliciously issued criminal process and subjected to excessive force.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff WALTER BRAVO'S constitutional rights.

83. All of the foregoing acts by defendants deprived plaintiff WALTER BRAVO of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from excessive force;
- D. To be free from deliberate indifference to serious medical need;
- E. To be free from the failure to intervene;
- F. To be free from retaliation for the exercise of his First Amendment rights;
- G. To be free from malicious abuse of process;
- H. To receive equal protection under law.

84. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

Supplemental State Law Claims

85. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "84" with the same force and effect as if fully set forth herein.

86. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

87. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

88. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

89. Plaintiff has complied with all conditions precedent to maintaining the instant action.

90. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A TWELFTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

91. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "90" with the same force and effect as if fully set forth herein.

92. Defendants arrested plaintiff WALTER BRAVO without probable cause.

93. Plaintiff was detained against his will for an extended period of time and subjected to physical restraints.

94. As a result of the aforementioned conduct, plaintiff WALTER BRAVO was unlawfully imprisoned in violation of the laws of the State of New York.

95. As a result of the aforementioned conduct, plaintiff WALTER BRAVO suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

96. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

97. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "96" with the same force and effect as if fully set forth herein.

98. As a result of the foregoing, plaintiff WALTER BRAVO was placed in apprehension of imminent harmful and offensive bodily contact.

99. As a result of defendant's conduct, plaintiff WALTER BRAVO has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

100. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable

attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

101. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "100" with the same force and effect as if fully set forth herein.

102. Defendants made offensive contact with plaintiff WALTER BRAVO without privilege or consent.

103. As a result of defendants' conduct, plaintiff WALTER BRAVO has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

104. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Malicious Abuse of Process under laws of the State of New York)

105. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "104" with the same force and effect as if fully set forth herein.

106. Defendants issued criminal process against plaintiff WALTER BRAVO by causing him to be arrested, arraigned and prosecuted.

107. Defendants caused plaintiff WALTER BRAVO to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up

their acts of brutality and abuse of authority.

108. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress under the laws of the State of New York)

109. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "108" with the same force and effect as if fully set forth herein.

110. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

111. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

112. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

113. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff WALTER BRAVO.

114. As a result of the aforementioned conduct, plaintiff WALTER BRAVO suffered emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

115. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive

damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

116. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered "1" through "115" with the same force and effect as if fully set forth herein.

117. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest, prosecution, and use of excessive force against plaintiff WALTER BRAVO.

118. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

119. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

120. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "119" with the same force and effect as if fully set forth herein.

121. Upon information and belief the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and

participated in the arrest, prosecution, and use of excessive force against plaintiff WALTER BRAVO.

122. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINETEETH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

123. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "122" with the same force and effect as if fully set forth herein.

124. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

125. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTIETH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

126. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "125" with the same force and effect as if fully set forth herein.

127. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

128. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §11)

129. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "128" with the same force and effect as if fully set forth herein.

130. As a result of defendants' conduct, plaintiff WALTER BRAVO was deprived of his right to equal protection of laws.

131. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-SECOND CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §12)

132. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "131" with the same force and effect as if fully set forth herein.

133. As a result of defendants' conduct, plaintiff WALTER BRAVO was deprived of

his right to security against unreasonable searches, seizures, and interceptions.

134. As a result of the foregoing, plaintiff WALTER BRAVO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

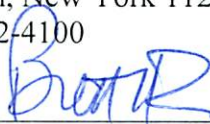
WHEREFORE, plaintiff WALTER BRAVO demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages;
- (B) punitive damages against the individually named defendants;
- (C) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
August 22, 2011

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(718) 722-4100

By:


BRETT H. KLEIN (BK4744)

Attorneys for Plaintiff WALTER BRAVO

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

WALTER BRAVO,

Plaintiff,

-against-

11 CV 0773
(NGG) (VVP)

CITY OF NEW YORK, JAVIER MUNOZ, in his individual
capacity, MANUEL ORELLANA, in his individual capacity, and
KELLY QUINN, in her individual capacity, and JOHN or JANE
DOE, in his/her individual capacity (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

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AMENDED COMPLAINT

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